

HCS HBs 2817 & 2961 -- IBOGAINE TREATMENT

SPONSOR: Overcast

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Emerging Issues by a vote of 8 to 1, with 2 voting present. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 9 to 2.

The following is a summary of the House Committee Substitute for HBs 2817 & 2961.

This bill establishes the "Veterans Mental Health Innovation Act."

The bill requires the Department of Health and Senior Services to award grants to conduct certified clinical drug development trials overseen by the United States Food and Drug Administration on the use of ibogaine for the treatment of opioid use disorder, co-occurring substance use disorder, or any other neurological or mental health condition for which ibogaine demonstrates efficacy. The Department must award grants only to an entity that satisfies criteria specified in the bill. The Department must begin accepting grant applications before November 1, 2026.

This bill creates the "Ibogaine Study Fund", which will consist of moneys appropriated to it by the General Assembly and any gifts, contributions, grants, or bequests received from Federal, private, or other sources. The State Treasurer will be custodian of the Fund. The State Treasurer may approve disbursements. The Fund will be used solely to award grants to conduct the certified clinical drug development trials.

An applicant selected to conduct ibogaine drug development clinical trials must quarterly prepare and submit to the Department:

- (1) A report on the progress of the drug development clinical trials conducted ; and
- (2) A financial status report, including information to verify expenditures of State funds and required matching funds.

The Department must submit a report to the General Assembly on the progress of the drug development clinical trials conducted and the financial status of the trials before December 1st of each year.

This bill creates the "Ibogaine Intellectual Property Fund", which will consist of all revenue attributable to all intellectual property rights and other commercial rights that may arise from drug development clinical trials during the period for which the trials are funded and any following period of commercialization. The State Treasurer will be custodian of the Fund. The State Treasurer may approve disbursements. The Fund will be used solely for programs that assist veterans or other at-risk populations in this state.

Intellectual property rights and other commercial rights arising from the drug development clinical trials conducted include any of the following as related to the trials:

- (1) Intellectual property, technology, and inventions;
- (2) Patents, trademarks, and licenses;
- (3) Proprietary and confidential information;
- (4) Trade secrets, data, and databases;
- (5) Tools, methods, and processes;
- (6) Treatment models or techniques;
- (7) Administration protocols; and
- (8) Works of authorship.

If ibogaine is approved by the United States Food and Drug Administration to treat a medical condition, no person will prescribe ibogaine for a patient except a licensed physician. The physician must supervise the administration of ibogaine at a hospital or other licensed health care facility to ensure patient safety.

This bill is similar to HB 2961 (2026).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that this bill provides a regulated structure through which veterans can find better approaches to mental health. Supporters further state that many of our vets are

lost to suicide each year. With only one or two treatments of ibogaine, vets can begin to see a major difference in their well-being, but in order to receive these treatments, they must travel to places like Canada. Supporters also state that drugs currently used to treat vets for PTSD can be highly addictive and cause suicidal ideation. In order for ibogaine to become FDA-approved, clinical trials and studies must be conducted to prove its efficacy, which is precisely what this bill seeks to do.

Testifying in person for the bill were Representative Overcast; Haley Fox; William "Trey" Warren III, PhD, Veterans Exploring Treatment Solutions; Americans For Ibogaine, Modern Health Coalition; Edward Russo; Alina Vera Love; Dale Morgan, Psychedelic Society Of Kansas City; Dr. Christine Ziemer, Psychedelic Society Of Kansas City; Dr. Haley Fox, Solo Practitioner; Ron Hicks, Transcend Ibogain Clinic; Walter D. Disney; and William Wisner, Grunt Style Foundation.

OPPONENTS: Those who oppose the bill say that the use of drugs and other substances that have not yet been approved by the FDA should be prohibited. Opponents further state that physicians want to make use of all proper medications in the treatment of their patients, including vets and first responders, but prescribing something like ibogaine should not be a part of the regimen.

Testifying in person against the bill were Jacob Scott, Missouri State Medical Association; and Rachel Bauer, Missouri State Medical Association.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.